CLACKAMAS

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____
Jane Kay Cortez and Benjamin Jay Barber

_____ **Case No:** _____
Petitioner

_____
Filed by ☐ Guardian *or* ☐ Guardian ad litem

PETITION FOR RESTRAINING ORDER TO PREVENT ABUSE
Ex Parte

(Elderly Persons and Persons with Disabilities Abuse Prevention Act)

v.

Kati Tilton, Housing Authority of Clackamas County
Respondent
(Person to be restrained)

- *I need an interpreter:* ☐ *Spanish* ☐ *Russian* ☐ *other:* _____

NOTICE TO PETITIONER

- You must provide **complete and truthful** information. If you do not, the court may cancel the restraining order. The court may also hold you in contempt.
- **Contact Address and Telephone Number**: If you don't want Respondent to know your residential address or phone number, use a safe contact address and telephone number so the court and the sheriff can reach you if necessary.

I am ☐ Petitioner *or* ☐ Petitioner's guardian or guardian ad litem[1] ("guardian petitioner"). I declare that the following information is true as to Petitioner:

1. Residency
I live in *(county and state)* _____

Respondent lives in *(county and state)*_____

☐ I am filing in this county because an incident of abuse occurred here (see below)

If this Petition is filed by a guardian petitioner, Petitioner's SAFE contact information:

_____
Street *City, State, ZIP* *Contact Phone*

2. Party Information
Petitioner:
☐ is age 65 or older
☐ is a person with a disability

Other disability information *(optional)*: _____
_____
_____

☐ Respondent is not a court-appointed guardian or conservator for Petitioner

[1] Complete all answers on behalf of Petitioner, not yourself, unless otherwise specified

3. Other Cases Between Petitioner and Respondent *(pending or finished)*

☒ There is a restraining order[2] or stalking order

County and state: Related Clackamas County matters; see Attachment A Case #: 25PO11318; 26P000432/433; 26FE0586

☐ There is a court case for divorce (dissolution), annulment, or separation

County and state: _____ Case #: _____

☐ There is a protective order case under ORS Chapter 125 (Guardianship and Conservatorship)

County and state: _____ Case #: _____

4. Abuse within past 180 days

Within the past 180 days (about 6 months)* the respondent has abused me (as defined in ORS 124.005(1)) at least one time in the following ways:
(check all that apply)

☐ Caused (or tried to cause) me physical pain or injury (not by accident)
☒ Caused physical harm by withholding services needed for my health and well-being
☐ Abandoned me by neglecting to perform or stopping duties and obligations and is my caretaker
☐ Wrongfully took or used my money or property, or threatened to
☐ Had sexual contact with me that I did not consent to or was not able to consent to
☒ Made me fear significant physical or emotional harm by:
- ☐ using derogatory, inappropriate, or profane names or phrases
- ☒ ridicule, harassment, threats, or intimidation
- ☐ inappropriate sexual comments
- ☐ conduct or actions

**The 180-day period can be increased by any time Respondent was in jail or prison, or lived more than 100 miles from your home*

☐ Respondent was in jail or prison
Dates (from – to) _____
☐ Respondent lived more than 100 miles from my home
Dates (from – to) _____

5. Incidents of Abuse *(if filing for sweepstakes restrictions, skip to section 7, below)*

A. Specific Acts re: Money or Property

☒ Respondent wrongfully took or used Petitioner's money or property
☒ Respondent knowingly alarmed Petitioner by threatening to wrongfully take or use money or property. It is reasonable for Petitioner to believe the threat would be carried out.

B. Describe the incidents of abuse that happened **within the past 180 days**, starting with the most recent incident

Respondent, as HACC operations manager, is part of the continuing effort to evict and displace Petitioners before federal relocation and voucher protections are complete. See Attachment A.

[2] Under EPPDAPA, Family Abuse Prevention Act (FAPA), or any other source

Date: March-April 2026 County, State: Clackamas County, Oregon

HACC processed relocation/voucher matters through Kati Tilton while the household was trying to port to Multnomah County, but continued possession/eviction pressure. Petitioners believe this threatens wrongful loss of housing/voucher property.

Date: Jan. 2026 and continuing County, State: Clackamas County, Oregon

After earlier VAWA/restraining-order issues involving Julio Cortez, HACC removed Benjamin from the lease and treated Julio as back in the household, despite abuse protection concerns. See Attachment A.

X

Date: X County, State:

Earlier events are included only as context and pattern: the prior Ashley Ferron EPPDAPA filings, the Julio Cortez restraining-order/VAWA lease-bifurcation dispute, and HACC's alleged policy or practice of disregarding federal housing protections.

☐ Additional page attached labeled "Incidents of Abuse – 180 Days"

C. ☐ Other incidents of abuse happened **more than 180 days ago** *(describe)*:

☐ Additional page attached labeled "Additional Incidents of Abuse"

6. ☐ I am in **immediate and present danger of future abuse** by Respondent
Explain: Petitioners face imminent loss of home, possible lockout, collapse of relocation rights, disruption of a Tenant Protection Voucher port to Multnomah County, and severe emotional/physical harm to Jane Cortez, age 72 and disabled. Respondent controls or materially participates in HACC actions that can continue or stop the displacement. See Attachment A.

7. For sweepstakes restriction:
☐ Petitioner has spent more than $500 on sweepstakes promotions from Respondent and/or associated entities in the past year. Petitioner needs the court's assistance to avoid incurring further expense.

8. Move-out and Assistance Orders
☐ I want Respondent ordered to move out of my residence *(check all that apply)*:
- ☐ the residence is solely in my name
- ☐ Respondent and I jointly own, lease, or rent the residence
- ☐ Respondent is my spouse or Registered Domestic Partner[3]

☐ I want a peace officer to accompany ☐ me ☐ Respondent to leave the residence and/or remove essential personal effects from the residence

9. Firearms Prohibition and Dispossession *(optional)*
☐ I ask the court to prohibit Respondent from possessing firearms and ammunition and to order Respondent to surrender all firearms and ammunition currently in their possession because Respondent is a threat to my physical safety and welfare.
Explain why: _____

☐ Petitioner and Respondent have a QUALIFYING RELATIONSHIP:
- ☐ spouses/Registered Domestic Partners *(current or former)*
- ☐ cohabitants *(current or former)*
- ☐ in a sexually intimate relationship *(current or former)*
- ☐ adults otherwise related by blood or marriage

10. Additional Relationship Information
(This information is optional. You do not have to tell the court what your relationship to Respondent is unless you have asked for an order prohibiting firearms in Section 9. Your restraining order will not be denied if you choose not to provide relationship information.)

Respondent is my:
☐ family member ☐ roommate/cohabitant ☐ landlord ☐ caregiver

[3] Only same-sex couples can have a Registered Domestic Partnership in Oregon. If you are not sure if your partnership is a Registered Domestic Partnership, you may want to talk to a lawyer.

☐ other: _____

11. Attorney Fees

☐ I want Respondent to reimburse me for attorney fees and other expenses related to this case

I ask the court to order my requests as marked on the Restraining Order to Prevent Abuse

---

I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

Submitted by: ☐ Petitioner ☐ Guardian petitioner ☐ Attorney for Petitioner

Date	Signature
Email	Name (printed)

Contact Address *(use a SAFE address)* City, State, ZIP Contact Phone *(use a SAFE number)*

Attorney for Petitioner:

Date	Signature
OSB#	Name (printed)

Address City, State, ZIP Phone

ATTACHMENT A
INCIDENTS OF ABUSE, IMMEDIATE DANGER, AND REQUESTED RELIEF

Petitioners: Jane Kay Cortez and Benjamin Jay Barber
Respondent: Kati Tilton, Housing Authority of Clackamas County

A. Protected Persons

1. Jane Kay Cortez is 72 years old and disabled. She is the primary elderly/disabled protected person facing immediate harm from displacement.
2. Benjamin Jay Barber is disabled and seeks protection as a protected person and household member/caregiver whose housing, lease, and relocation rights are intertwined with Jane Cortez's safety.
3. Petitioners live at 10043 SE 32nd Ave, Milwaukie, Oregon, in HACC-controlled public housing connected to a Tenant Protection Voucher and relocation process.

B. Most Recent Abuse Within 180 Days

4. In March and April 2026, while Petitioners were trying to complete relocation and port a Tenant Protection Voucher to Multnomah County, Respondent Kati Tilton handled or materially participated in HACC communications and administration of the voucher, orientation, relocation paperwork, and housing process.
5. HACC has nevertheless pursued or allowed an eviction/possession process before Petitioners' relocation and voucher process was complete. Petitioners contend this threatens wrongful taking or loss of their housing, leasehold, voucher, relocation, subsidy, and possessory rights.
6. Jane Cortez is in imminent danger of significant physical and emotional harm if locked out or displaced before relocation is complete. She is 72, disabled, and depends on stable housing, disability accommodations, and Benjamin Barber's assistance. Loss of the home would disrupt the voucher port, medical/disability stability, and the subject matter of the relocation process.
7. Federal relocation law and HUD rules require actual relocation protections, comparable housing, and voucher timing protections before displacement. Petitioners contend HACC is treating unfinished voucher paperwork or an unfinished housing search as if it were completed relocation.
8. Petitioners allege that Respondent's conduct, in her official HACC role, is part of a continuing policy or practice of willful disregard of federal housing law, including VAWA protections, disability accommodation duties, and federal relocation/voucher duties.

C. VAWA / Lease-Removal Background

9. In late 2025 and early 2026, Petitioners raised abuse-related safety issues involving Julio Cortez and sought VAWA-related lease bifurcation or protection. Repository records reflect that a Julio-related protective order existed by November 2025 and that HACC was repeatedly placed on notice of household-composition and restraining-order issues.
10. Petitioners allege that despite the restraining-order and VAWA context, HACC unlawfully removed Benjamin Barber from the lease and treated Julio Cortez as restored to or still part of the household. Petitioners contend that this penalized the protected side of the household rather than isolating the alleged perpetrator, contrary to VAWA's anti-penalization and lease-bifurcation protections.
11. HACC records and repository timelines reflect that HACC generated or relied on lease-side paperwork effective January 1, 2026; on January 12, 2026 HACC still wrote that Julio was a household member unless court documentation was submitted; and by January 27, 2026 HACC treated the household as reduced to one-bedroom voucher eligibility.
12. Jane Cortez has declared that during the March 23, 2026 HUD NSPIRE inspection she heard HACC staff state, in substance, that Benjamin had been taken off the lease because Benjamin's brother and stepfather had been emailing documents to HACC and that HACC associated the delay or non-move with sorting through those materials.

13. Petitioners previously filed EPPDAPA/protective-order matters naming Ashley Ferron in her official HACC capacity. Repository materials reflect those petitions were denied, and contemporaneous notes indicate the court may have viewed the housing-administration issues as better addressed elsewhere. Petitioners reference those filings here as background and pattern, not as proof that the prior petitions were granted.

D. Why Immediate Protection Is Needed

14. The danger is immediate because eviction, lockout, or loss of possession would occur before the federal relocation and voucher process is adjudicated or completed.
15. If Petitioners are displaced now, Jane Cortez may lose stable housing, access to necessary disability accommodations, access to her caregiver support, and the practical ability to complete the Multnomah County voucher port. The resulting harm is not only economic; it threatens significant physical and emotional harm to an elderly disabled person.
16. Respondent should be restrained from abusing, intimidating, interfering with, menacing, or causing displacement of Petitioners through HACC actions that wrongfully take or threaten Petitioners' housing, voucher, relocation, subsidy, occupancy, or possessory property rights.

E. Requested Relief

17. Order Respondent not to abuse, intimidate, molest, interfere with, or menace Petitioners.
18. Order Respondent not to cause, authorize, request, coordinate, or enforce displacement, lockout, eviction trespass, lease removal, loss of subsidy, loss of voucher, or loss of relocation rights against Petitioners while the federal relocation/voucher issues remain unresolved, except through lawful court proceedings after compliance with all applicable federal protections.
19. Order Respondent not to exercise control over Petitioners' housing, lease, voucher, relocation, subsidy, occupancy, or possessory rights in a manner inconsistent with federal relocation law, VAWA, disability-accommodation requirements, or any court stay or protective order.
20. Order Respondent to preserve all HACC records concerning Petitioners' lease composition, household status, VAWA/bifurcation requests, restraining-order documents, Tenant Protection Voucher, portability to Multnomah County, emergency-transfer issues, reasonable accommodations, and eviction/possession actions.
21. Grant any other relief necessary for the safety and welfare of Jane Cortez and Benjamin Barber under ORS 124.020.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____

_____
Petitioner

_____
Filed by ☐ Guardian *or* ☐ Guardian ad litem

v.

_____
Respondent
(Person to be restrained)

Case No: _____

RESTRAINING ORDER TO PREVENT ABUSE

(Elderly Persons and Persons with Disabilities Abuse Prevention Act ORS 124)

NOTICE TO RESPONDENT

Review this order carefully

- Petitioner cannot give you permission to do something this Order prohibits
- You may be arrested and subject to civil and criminal penalties if you violate this order
- This order is enforceable in every state
- See the attached "*Notice to Parties*" and "*Request for Hearing*" for information about your right to a hearing

Based on the *Petition* and testimony of ☐ Petitioner ☐ Guardian Petitioner

THE COURT FINDS: *Judge Initials*

☐ Petitioner is an elderly person or person with a disability _____

☐ Respondent has abused Petitioner (as defined by ORS 124.005) within the past 180 days _____

☐ Petitioner is in immediate and present danger of further abuse _____

THE COURT ORDERS:

1. ☐ **Respondent is restrained from abusing, intimidating, molesting, interfering with, or menacing Petitioner** **1.** _____

2. ☐ Respondent is prohibited from entering, attempting to enter, or remaining at the following premises: **2.** _____
   ☐ Petitioner's residence *(address)*:_____
   ☐ _____
   ☐ _____

3. ☐ Respondent is ordered to **move from** and not return to the residence: **3.** _____
   (address):_____

4. ☐ A peace officer will accompany ☐ Petitioner ☐ Respondent to the residence to remove that party's essential personal items including (but not limited to) clothing, toiletries, medications, Social Security cards, birth certificates, identification, and tools of the trade **4.** _____

5. Contact **5.** _____

Except for appearing at and participating in legal proceedings or as needed to have Petitioner served with legal documents, Respondent is prohibited from contacting Petitioner or knowingly being within ☐ 150 *or* _____ feet of Petitioner

☐ **Except** Respondent may contact Petitioner by this method: _____

for this reason: _____

_____

6. ☐ **Sweepstakes** **6.** _____

Respondent is restrained from mailing Petitioner any sweepstakes promotion effective **150 days** from the date of this Order. Respondent is ordered to remove Petitioner from Respondent's sweepstakes promotion mailing list or place Petitioner on a list of persons to whom sweepstakes promotions may not be mailed. Respondent is ordered to promptly refund any payment received in any form from Petitioner after the date of this Order.

7. ☐ **Money and Property** **7.** _____

Respondent is:

☐ restrained from exercising control of Petitioner's money or property

☐ ordered to follow the instructions of Petitioner's guardian or conservator

☐ prohibited from transferring Petitioner's money or property to anyone other than Petitioner

☐ ordered to return custody and control of the following money or property to Petitioner by *(date)*_____ *(list property)*_____

_____

_____

8. No further service is necessary because Respondent appeared in person before the court **8.** _____

9. *(FOR COURT USE ONLY)*

FIREARMS PROHIBITION AND DISPOSSESSION **Judge's Initials**

(Not required unless firearms terms are being ordered.)

9A. The court orders Respondent is PROHIBITED from possessing firearms or ammunition 9A. _____

9B. Respondent is ordered to SURRENDER all firearms and ammunition in their possession according to the attached *Firearms Surrender Terms* because both of the following are found: 9B. _____

☐ Petitioner and Respondent have a QUALIFYING RELATIONSHIP *(current or former spouses/Registered Domestic Partners, current/former cohabitants, current/former sexually intimate relationship, adults related by blood or marriage, unmarried parents of a minor child)*

☐ Respondent represents a CREDIBLE THREAT to Petitioner's physical safety

FIREARMS NOTIFICATION

If Section 9A is initialed by the judge ordering that you are prohibited from possessing firearms or ammunition, you are immediately prohibited from purchasing or possessing any FIREARM, including a rifle, pistol, or revolver, and AMMUNITION (ORS 107.718(1)(h)).

If Section 9B is initialed ordering you to surrender firearms and ammunition, you will be prohibited from purchasing or possessing any firearms or ammunition under ORS 166.255 if:

- You request a hearing to contest this *Order* and the *Order* is not dismissed
- You request a hearing to contest this *Order* but then withdraw your request
- You request a hearing to contest this *Order* but do not attend the hearing

or

- 30 days pass after you were served with or became aware of this *Order* and you do not request a hearing to contest this *Order*

Talk to a lawyer if you have questions about this

10. SECURITY AMOUNT for violation of any provision of this Order is **$5,000** unless otherwise specified here: $_____ **10.** _____

11. Other Orders *(including service orders for sweepstakes promotions)* **11.** _____

_____

_____

_____

_____

The Petition for Restraining Order to Prevent Abuse is:

☐ **DENIED**

- ☐ Petitioner did not establish a claim for relief
- ☐ Petitioner did not appear at the time set for the ex parte hearing on the petition
- ☐ Other:

☐ **GRANTED**

The provisions of this Restraining Order are in effect for a period of one (1) year from the date of the judge's signature *(unless renewed before it expires)* or until the order is dismissed, modified, or replaced, whichever occurs first

Judge Signature:

_____ _____

Certificate of Readiness
This proposed order is ready for judicial signature because it is submitted **ex parte** as allowed by statute or rule; or is being submitted in **open court** with all parties present

Submitted by ☐ Petitioner ☐ Guardian petitioner ☐ Attorney for Petitioner

Date	Signature
OSB# *(attorneys only)*	Name (printed)

Contact Address *(use a SAFE address)* City, State, ZIP Contact Phone *(use a SAFE number)*

SERVICE INFORMATION

The Respondent will receive a copy of this information
If you do not want Respondent to know your residential address or phone number, use a contact address in the state where you reside or a contact phone number so the court and the sheriff can reach you if necessary. Check for mail at this address frequently. The court will assume that you receive all notices sent to your contact address.

PETITIONER: *(Name)* _____ ☐ Female ☐ Male ☐ Nonbinary

_____
****Residence/Contact Address (use a safe address):**** *Street* *City, State* *ZIP*

Contact Phone Number_____*(Use safe contact number)*

Age _____Race/Ethnicity _____Height _____ Weight _____

Eye Color _____Hair Color _____

RESPONDENT: *(Name)*_____ ☐ Female ☐ Male ☐ Nonbinary

Residence Address _____
County

Phone Number _____

Date of Birth:_____Race/Ethnicity _____Height _____Weight _____

Eye Color _____Hair Color _____

PLEASE FILL OUT THIS INFORMATION
TO HELP WITH SERVICE OF THE RESTRAINING ORDER

Where is Respondent most likely to be found?
☐ Residence Hours _____ *Address above*
☐ Employment Hours _____Address _____
☐ Other: Hours _____Address _____

Description of Vehicle _____

Is there anything about the other party's character, past behavior, or the present situation that indicates that he or she may be a **danger** to others? To him/herself? (*Explain)*: _____
_____
_____

Does the other party have any **weapons, or access to weapons**? (*Explain)*: _____
_____
_____

Has the other party ever been **arrested for or convicted of** a violent crime? (*Explain)*:_____
_____
_____

SERVICE INFORMATION SUPPLEMENT

Petitioners:	Jane Kay Cortez and Benjamin Jay Barber
Petitioners' contact address:	10043 SE 32nd Ave, Milwaukie, OR 97222
Contact phone:	971-270-0855
Respondent:	Kati Tilton, Housing Authority of Clackamas County
Likely service location:	Housing Authority of Clackamas County, 13930 S Gain St, Oregon City, OR 97045
Phone:	HACC main office: 503-655-8267
Likely availability:	HACC office / work hours
Weapons information:	Petitioners do not know of firearms or weapons information for Respondent.
Danger note:	The alleged danger is administrative displacement, loss of housing/voucher property, and resulting physical/emotional harm to elderly/disabled Petitioners.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____

_____ **Case No:** _____
Petitioner

_____
Filed by ☐ Guardian ☐ Guardian ad litem

v.

_____
Respondent

CERTIFICATE OF SERVICE

(Elderly Persons and Persons with Disabilities Abuse Prevention Act)

I, *(name)*_____, declare that I am a resident of the state of _____. I am a competent person 18 years of age or older. I am not a party to or lawyer in this case, and not the employee of a party.

I certify that on *(date)* _____at *(time)*_____(am/pm),
I served ☐ Respondent ☐ Petitioner named above by delivering the following documents in person to *(address or location of service)*_____
_____

I served true copies of the original *(check all that apply)*:

☐ Restraining Order to Prevent Abuse ***and*** Petition for Restraining Order to Prevent Abuse
☐ Order Renewing Restraining Order ***and*** Petition to Renew Restraining Order

with the Notice to Parties/Request for Hearing form

☐ Other *(name all forms or documents served)*_____
_____

I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

_____ _____
Date Signature of Server

_____
Print Name

If person serving is NOT a sheriff or sheriff's deputy, address and phone number of server:

_____

_____

NOTICE TO PARTIES AND REQUEST FOR HEARING

THIS FORM MUST BE ATTACHED TO ALL COPIES OF THE *RESTRAINING ORDER*

Notice of Petitioner's Rights

PETITIONER: You have the same right to request a hearing as the Respondent. File your *Request for Hearing* within 30 days of receiving notice of the *Order*.

If your *Petition* was filed by a guardian or guardian ad litem ("guardian petitioner") you still have the right to:

- talk to and be represented by a lawyer
- see your personal records
- request a hearing
  and
- present evidence and question witnesses at any hearing

RESPONDENT
A judge has issued a restraining Order that affects your rights. The order is now in effect.

Enforceability of the Restraining Order
The *Restraining Order* you have received is in effect and remains in effect until the court changes (modifies) or dismisses it, or until it expires. The petitioner may renew the order.

If you are arrested for violating this order, the security amount (bail) is $5,000, unless a different amount is ordered by the court.

Violation of the Restraining Order
Violation of any part of this order (or any order renewing or changing this order) is contempt of court. Contempt is punishable by a fine of up to $500 or 1% of your annual gross income, whichever is greater, or a jail term of up to six months, or both. Other penalties may also be imposed.

FIREARMS PROHIBITIONS MAY APPLY TO YOU!

If a firearms prohibition in Section 9 of the *Restraining Order* is initialed by the judge:

If 9A is initialed: Civil Penalties for Firearms Possession Apply

- it is immediately unlawful for you to possess or purchase a firearm, including a rifle, pistol, or revolver, and ammunition under ORS 124.020(1)(f)
- you are subject to contempt of court for violation of the firearms prohibition as soon as you are served with the *Order*

If 9B is initialed: Criminal Penalties for Firearms Possession Apply (ORS 166.255(1)(a))

You will be subject to criminal penalties for possessing firearms or ammunition effective the earlier of:

(1) 30 days after you were served with or became aware of the *Order*

Or, if you request a hearing:

(2) the date of the hearing if the *Order* is not dismissed *or*
(3) the date of the hearing if you fail to appear at the hearing *or*
(4) the date you withdraw your request for a hearing

You may also be prohibited from:

- Serving in the Armed Forces of the United States or being employed in law enforcement. If you have any questions about how these laws apply to you, talk to a lawyer.
- Traveling across state lines or tribal land lines with the intent to violate this Order and then violating this order
- Causing the Petitioner to cross state lines or tribal land lines for the purpose of violating the order

Other Laws May Also Apply To You

Whether or not a Restraining Order is in effect, federal law may prohibit you from:

- Traveling across state lines or tribal land lines with the intent to injure the Petitioner and then intentionally committing a crime of violence causing bodily injury to the Petitioner.
- Causing the Petitioner to travel across state lines or tribal land lines if your intent is to cause bodily injury to the Petitioner or if the travel results in your causing bodily injury to the Petitioner.

BOTH PARTIES

If you oppose the *Restraining Order*, complete the attached "*Request for Hearing*" form. Mail or deliver it to the address below.

A REQUEST FOR HEARING must be filed with the court **within 30 days** after you received the order. You must include your address and telephone number. A hearing will be held within 21 days after you file your request with the court. **If you do not go to the hearing, the restraining order may remain in effect.**

At the hearing, both parties can bring witnesses, including adult protective services workers. The hearing may be held in person or by telephone. The court may change, cancel, or continue any of the terms of the *Order*. The court may order either party to move from the residence, and may order one party to pay attorney fees and costs associated with the hearing.

If you do not request a hearing within 30 days, the order will remain in effect as issued

IF YOU COMPLETE THE REQUEST FOR HEARING FORM, MAIL OR DELIVER IT TO (*address of court*):_____

_____

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____

_____
Petitioner

Case No: _____

_____
Filed by ☐ Guardian ☐ Guardian ad litem

v.

_____
Respondent

REQUEST FOR HEARING

(Elderly Persons and Persons with Disabilities Abuse Prevention Act)

- *I need an interpreter:* ☐ *Spanish* ☐ *Russian* ☐ *other:* _____

I am the ☐ Respondent ☐ Petitioner. I request a hearing to oppose the *Restraining Order*.

I oppose the following orders granted in the *Restraining Order*:

Section Number	Explain:

☐ Additional page attached

I ☐ will ☐ will not be represented by an attorney at the hearing
Name and bar number of the attorney (if known): _____
_____

☐ I will need Americans with Disabilities Act accommodations at the hearing

---

I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

Submitted by: ☐ Respondent ☐ Petitioner ☐ Attorney for {☐ Respondent ☐ Petitioner}

_____ _____
Date Signature

_____ _____
Email Name (printed)

_____
Contact Address City, State, ZIP Contact Phone

Attorney for filing party:

Date	Signature
OSB#	Name (printed)

Address	City, State, ZIP	Phone

NOTICE TO PETITIONERS:
RECEIVING ELECTRONIC NOTICE ABOUT RESTRAINING ORDERS

The sheriff is required to provide you with proof of service showing when your *Restraining Order* has been served

USE THIS FORM if you would also like to receive electronic notice by text message and/or email when your *Restraining Order* has been served or is about to expire

The information below will be given to the sheriff for the county where the *Restraining Order* is issued

DO NOT FILE THIS FORM WITH THE COURT!
Give or send it to the sheriff for the county where you filed for your *Restraining Order*

This is a VOLUNTARY option. You do not have to provide this information. The sheriff will still notify you when your *Restraining Order* has been served.

If your contact address or phone number changes, you must separately inform the court that issued the Order. If the information below changes, notify the sheriff.

PETITIONER'S NOTICE TO SHERIFF'S OFFICE
OF ELECTRONIC CONTACT INFORMATION

Your Name: _____

Respondent's Name: _____

Court Case #: _____

County where *Order* Issued: _____

Your cell phone number: _____

Cell Carrier *(AT&T, T-Mobile, Verizon. etc.)*: _____

Your email address: _____

NOTICE TO PETITIONERS RECEIVING ELECTRONIC NOTICE ABOUT RESTRAINING ORDERS

USE THIS FORM IF:

- You have already provided your email address or cell phone number to the sheriff's office to receive electronic notice when your *Restraining Order* has been served or is about to expire

AND

- Your email address or cell phone number has changed

DO NOT FILE THIS FORM WITH THE COURT

The information below must be provided to the sheriff's office in the county where the *Restraining Order* was issued

If your contact address or phone number has changed, you must separately inform the court that issued the Order

This form can be used ANYTIME a restraining order is in effect and you have changed your email address or cell phone number and still want to receive electronic notice from the sheriff's office about service or expiration.

PETITIONER'S NOTICE TO SHERIFF'S OFFICE OF CHANGE OF CONTACT INFORMATION

Your Name: _____

Respondent's Name: _____

Court Case #: _____

County where *Order* Issued: _____

Your new cell phone number: _____

Cell Carrier *(AT&T, T-Mobile, Verizon. etc.)*: _____

Your new email address: _____